

Temporary Assistance for Needy Families (TANF)

States that include TANF in the Combined State Plan must outline how the State will meet the requirements of section 402 of the Social Security Act including how it will:

a. Conduct a program designed to serve all political subdivisions in the State (not necessarily in a uniform manner) that provides assistance to needy families with (or expecting) children and provides parents with job preparation, work, and support services to enable them to leave the program, specifically cash assistance, and become self-sufficient (section 402(a)(1)(A)(i) of the Social Security Act).

Alabama's renewal plan is effective October 1, 2024. The State will continue to conduct programs designed to serve all political subdivisions in the State (not necessarily in a uniform manner) to provide assistance and/or services to needy families with children under the administration and supervision of the Alabama Department of Human Resources through County Departments of Human Resources located in the 67 counties in Alabama. The program in Alabama is known as the Family Assistance Program. Program operating guidelines which include all policies, procedures, etc., for the determination of initial and continuing eligibility for each program will be issued to the County Departments of Human Resources from the State Department of Human Resources as needed. Such operating guidelines contained in department program manuals or other correspondence is binding on the County Departments of Human Resources. Provision of assistance and/or services to eligible, needy families is contingent on the availability of program funding.

Activities of these county offices include: accepting and processing applications for assistance; and as appropriate conducting reviews and redeterminations of eligibility, providing child support enforcement services, information and referral services, providing family intervention and preservation services and managing a program of work activities and requirements known as the JOBS Program.

Family Assistance Program components: 1. Basic Assistance to Needy Families A. Temporary Cash Assistance (limited to 5 years); B. Work Program (includes services to current and former recipients of cash assistance) 2. TANF Emergency Assistance 3. TANF (Direct) Child Welfare 4. Special Projects

Financial criteria are provided for each program component in Attachment E in section (k) and section(m) as appropriate.

General program descriptions for the components of the Family Assistance Program are as follows:

1. Basic Assistance to Needy Families: A. Cash Assistance: (1) Time-limited financial assistance to meet basic needs is available to a family with a dependent child under age 18 or under age 19 if s/he is a full-time student in a secondary school or in the equivalent level of vocational or technical training and whose income does not exceed established agency standards and who are otherwise eligible. Nonparent adult caretaker relatives are excluded from the Family Assistance unit. (2) As needed, nonrecurrent short-term benefits to address a specific crisis situation or episode of need pursuant to 45 CFR 260.31.

B. Work Program: (See Section (b) Non— assistance expenditures for current and former recipients of cash assistance as well as certain needy applicants of cash assistance so as to maintain children in their own homes and end the dependency of needy parents by promoting work. Services include information and referral, case management, nonrecurrent short-term benefits as discussed in 45 CFR 260.31, day care, transportation and other work and training services.

2. TANF Emergency Assistance (Formerly AFDC-EA as provided by 45 CFR 233.120 with provision date of August 21, 1996): Assistance and services to or on behalf of a needy child under the age of 21 when it has been determined an emergency or crisis situation exists. Under this component an emergency exists when a child (a) is being or has been removed from his/her home and placed into publicly funded care or supervision as authorized by department staff or designee, or (b) is at risk of such removal as determined by department staff or designee.

Assistance includes paying for shelter, foster care, or emergency living expenses to alleviate the emergency or crisis situation. Services include information and referral, case planning and case management, counseling, and support activities to normalize family functioning, and health care and health maintenance activities. Assistance and services are provided to the extent they are determined necessary and appropriate by department staff. Assistance is authorized during one period of 30 consecutive days in any 12 consecutive months. All authorized services/assistance are delivered in the twelve-month time period between the authorized date and twelve months later. Methods of delivery of assistance and services includes vendor/contract payments to the provider of services and staff services. Staff service costs are determined according to the department's approved cost allocation plan

Assistance is available to or on behalf of a needy child 1) who is under the age of 21 and to any other member of the household in which he is living provided that such child is (or, within 6 months prior to the month in which such assistance is requested, has been) living with any of the relatives specified in section 406 (a)(1) of the Act and further clarified in 45 CFR 233.90(c)(1)(v) in a place of residence maintained by one or more of such relatives as his or her own home; (2) who has been removed from his/her home or is at risk of such removal and (3) whose emergency did not arise from his/her refusal or refusal of such relative with whom s/he lives without good cause to accept employment or training for employment.

3. TANF Direct Child Welfare: Non—assistance expenditures for payment of specific services for department child welfare cases such as counseling, case management, peer support, childcare, information and referral, transitional services and nonrecurrent, short-term benefits as discussed in 45 CFR 260.31. An individual is certified if that individual meets either of the following: 1) a child resides in his/her own home; 2) a child is in out-of-home placement and has a permanency goal to remain at home, return home, or live permanently with relatives.

4. Special Projects: A. Eligible Families: Non-assistance expenditures for services including information and referral to needy parents/families such as nonrecurrent short-term benefits as discussed in 45 CFR 260.31, day care, subsidized employment, transportation and work and training services, statewide food distribution network activities and pro—family activities expected to prevent and reduce the incidence of out of wedlock births as well as encourage the formation and maintenance of healthy two parent families including after school activities for teens, fatherhood and healthy marriage initiatives, mentoring and literacy programs and domestic violence/drug abuse/prevention/education programs. Additional non-financial criteria, if any, are dependent on the project plan.

After-School Care Program - Through a collaboration funded through a specific legislative appropriation with the Alabama Alliance of Boys and Girls Clubs, project based learning activities are provided for the purpose of preventing out of wedlock teen pregnancy. Program projects include: Character, Health and Life Skills; Education and Career Development; and Health and Physical Education Programming.

B. Pro-Family Activities for Other Than Eligible Families: Non-assistance in the form of non-federal cash and in-kind qualified expenditures by third parties for individuals and families pursuant to 45 CFR 263.2(a) (4) (ii). Program specifics including non-financial eligibility criteria, if any, are contained in written agreements/contracts between the Department of Human Resources and the third party and in project plans as applicable.

These benefits and services are provided without regard to financial need or family composition.

b. Require a parent or caretaker receiving assistance to engage in work (defined by the State) once the State determines the parent or caretaker is ready to engage in work, or once he or she has received 24 months of assistance, whichever is earlier, consistent with the

child care exception at 407(e)(2) (section 402(a)(1)(A)(ii) of the Social Security Act)

1. Requirements and Activities

The State will operate a welfare work program in compliance with Section 407 of Title IV-A of the Social Security Act and consistent with Alabama's approved Work Verification Plan. The program is known as the JOBS Program. All parents/stepparents, including teen parents, who are receiving assistance, are referred to the JOBS Unit for assessment in regard to their skills, prior work experience and employability. The assessment process includes screening for disability and language assistance needs. An Individual JOBS Participation (IJP) and Family Responsibility Plan (FRP) will be developed for these individuals. Individuals determined to be ready to engage in work will be immediately placed in work or work-related activities for up to 40 hours per week. After receipt of assistance for 24 months, all individuals not already participating in such activities will be required to engage in work activities, as defined in state policy.

NONCOMPLIANCE WITH PROGRAM REQUIREMENTS Work Program-The parent(s) and/or stepparent(s) of a dependent child(ren) receiving assistance are required to participate in work activities designed to result in gainful employment unless the parent(s)/stepparent(s) is deferred or has good cause for not participating as specified in department program manuals. See Attachments B and C below. The penalties for failure to comply are as follows: Applicants: Upon overt refusal of the grantee relative or other member(s) of the assistance unit required to participate in JOBS activities, the application will be denied and entitlement to benefits for the month of application through the month of application disposition is lost even if reapplication is made in the month of the original application disposition. Recipients who have received for less than 24 months: For the first three months of non-compliance (consecutive or not), the grant amount is reduced by 50% of the payment standard for the assistance unit size. For a month of non-compliance in excess of three months, the assistance unit is disqualified for a one-month period for the first disqualification. For a month of non-compliance following the first disqualification, the assistance unit is immediately disqualified for a six-month period. For a month of non-compliance following the second and subsequent disqualifications, the assistance unit is immediately disqualified for a twelve-month period. Recipients who have received for 24 months or more: The assistance unit is immediately disqualified for a one-month period for the first instance of non-compliance; a six-month period for the second instance of non-compliance and a twelve-month period for the third and subsequent instances. Recipients who voluntarily terminate employment or refuse employment without good cause (regardless of the number of months of receipt): The assistance unit is immediately permanently disqualified. Attachment B WORK PARTICIPATION DEFERRAL CRITERIA and SPECIAL CIRCUMSTANCES DELAY CRITERIA A. Deferral Criteria -Individuals may be temporarily deferred from the participation requirements of the JOBS Program if the individual: 1. Is a person in the home whose presence is required on a substantially continuous basis due to the illness or

incapacity, determined on the basis of medical evidence, of a related individual and no other appropriate individual is available to provide the needed care. 2. Has an illness or injury which is serious enough to temporarily prevent employment or training with the goal of employment. This includes pregnancy when it is determined by medical evidence that working or participation in training would be detrimental to the woman or the unborn child. 3. Is incapacitated with a physical or mental impairment which prevents the individual from engaging in employment or other work activity as determined by medical evidence from an authorized source (physicians, the Department of Rehabilitative Services or other acceptable documents). 4. Has been battered or subjected to extreme cruelty as defined in department program manuals to the extent participation in program work requirements is precluded. 5. Is participating in drug, alcohol or mental health counseling to the extent participation in program work requirements is precluded. 6. Is a single custodial parent caring for a child under the age of six (6) and appropriate childcare is not available or is inaccessible to the client. 7. Is a single custodial parent (age 18 or older) of a child age 6 months or younger. 8. Is age 60 or older. 9. Has no regular transportation of any kind available. 10. Has a personal barrier of such significance to preclude participation in a work activity or employment and is participating in other JOBS activities to overcome the barrier. 11. Is a parent in a two-parent family who has to provide childcare for a child while the other parent works or participates in a JOBS activity because appropriate childcare is not otherwise available, accessible and/or affordable. (Attachment B cont'd.) B. Special Circumstances Delay Criteria Participation for clients who are required to participate and do not meet deferral criteria may be delayed if no appropriate component/employment is available. Attachment C GOOD CAUSE FOR NONCOMPLIANCE WITH JOBS ACTIVITIES Good cause for failure or refusal to participate in JOBS activities or to accept employment includes the following: 1. Illness of individual or illness of a household member or family member which requires the presence of the individual. 2. Childcare problems 3. Transportation problems 4. Personal or family crisis 5. Domestic Violence issues 6. Rare/Unusual Circumstances 7. Non-receipt of correspondence 8. Administrative error.

2. Displacement Provisions

Pursuant to 45 CFR 261.70, no adult in a work activity as described in 45 CFR 261.30 will be employed or assigned to an employment when any other individual is on layoff from the same or an equivalent job in the company, or if the employer has terminated the employment of any regular employee or otherwise caused an involuntary reduction of the workforce in order to fill the vacancy so created with a recipient of Family Assistance. Aggrieved individuals may file a written complaint with the Family Assistance Division, State Department of Human Resources. All complaints are investigated. Complainants are advised of findings in writing. Corrective action is taken by the Department as appropriate.

c. Ensure that parents and caretakers receiving assistance engage in work in accordance with section 407 (section 402(a)(1)(A)(iii) of the Social Security Act)

To ensure engagement, the State conducts monitoring as described in Alabama's approved Work Verification Plan. That monitoring includes case record reviews beginning at the local level and continuing to the State level for re-review. Negative findings require correction action. Findings in these reviews are a component of the performance evaluation of Directors, County Departments of Human Resources. Additionally, each County Office is required to develop and submit a County Management Plan related to activities of the JOBS Program. That plan requires an analysis of work participation data and activities as well as a corrective action plan if needed. These plans are reviewed and monitored by State Office Field Supervisors.

A FRP is developed jointly by the FA grantee relative and the JOBS case manager. It outlines the responsibilities of the FA grantee in regard to the participation of all required family members and includes a copy of the IJP for each required family member. The IJP outlining work activities, supportive services and other family needs is developed jointly by the recipient and the JOBS case manager. Support services such as childcare, transportation, and work/participation expenses will be made available as needed to enable recipients to participate in work or work—related activities. Other services include information and referrals for domestic violence and substance abuse issues. The individual will receive reimbursement or payment of agreed upon expenses directly related to participation in such activities. Each recipient will be informed of the work requirements, what constitutes noncompliance, and the sanctions for non—compliance. If a recipient refuses or fails to cooperate with work requirements as set forth in his/her IJP, the family's benefits will be reduced or terminated as set forth in state policy unless good cause for the non—compliance, as defined in state policy, is established. No sanction for failure to work or participate in work—related activities will be imposed on any single custodial parent caring for a child under age 6 if the individual proves that s/he has a demonstrated inability to obtain needed childcare.

Each non—deferred recipient will be placed in a work—related activity consistent with his/her IJP. Work activities may include: Subsidized/Unsubsidized employment

On the job training

Job Search

Job Readiness Activities

Community Employment Placement (work experience)

Community Service Employment

Vocational education activities

Job skills training

Satisfactory attendance in high school or a course of study leading to a GED

Education directly related to employment

For the duration of the recipient's involvement in work activities, the JOBS case manager will monitor component participation and provide assistance to participants with any problems or barriers.

Individuals who agree to treatment programs for drug, alcohol, or mental health reasons may be temporarily deferred from a work activity when the person is making a serious attempt to recover. Domestic violence victims will be deferred from a work activity when they are at risk of endangerment.

Definitions

a. Unsubsidized Employment: This is paid employment for either wages or salary where no part of the pay is subsidized by TANF or any other public programs.

b. Work Experience: In Alabama this activity is called Community Employment or CEMP. CEMP is a work activity, performed in return for welfare that provides an individual with an opportunity to acquire the general skills, training, knowledge, and work habits necessary to obtain employment. Placements are designed to help prepare the client to obtain unsubsidized employment by allowing him/her to develop a current work history and establish references for future employment seeking efforts as well as develop and improve marketable skills. Placements will be in both nonprofit and for-profit businesses. Placement in for-profit businesses will have shorter time frames (maximum of three months) than placements in nonprofit businesses (maximum of six months).

c. On-the-Job-Training: In this component a public or private employer hires the TANF client full-time where part of the wages are subsidized, usually by a governmental entity such as Department of Labor. While employed in the OJT position, the client engages in productive work while receiving training in knowledge and skills essential for adequate job performance. The client is compensated at a rate comparable to that of other employees performing the same or similar jobs, but at no less than minimum wage.

d. Job Search and Job Readiness:

1. Job Search is assigned in increments lasting no more than two weeks. The client is expected to complete a number of serious contacts with potential employers and must also register with the Employment Service. The daily number of required contacts is determined by the case manager based on the client's specific circumstances and the geographic area. The case manager will randomly contact employers turned in as job contacts to verify that an application was submitted and/or an interview was conducted.

2. Job Readiness is an intensive, short—term component, consisting of formal classroom training designed to prepare the client for successfully seeking and

maintaining employment. Activities focus on pre—employment preparation and are aimed at helping the client overcome barriers that might preclude employment. Typical activities include application completion, interview skills, ways to locate job openings, general workplace expectations, and the behaviors and attitudes necessary to compete successfully in the labor market. This activity also includes substance abuse, mental health and rehabilitation counseling for clients who are otherwise employable.

e. Vocational Educational Training: This is organized educational programs that are directly related to the preparation of individuals for employment in current or emerging occupations requiring training including a baccalaureate or advanced degree. These courses should provide individuals with technical skills and academic knowledge needed for success in current or emerging employment sectors. It also includes any formal instruction in a skill or trade traditionally referred to as job skills training, determined by the JOBS staff to be other than purely academic in nature, that prepares the client for a vocation. For example, technical programs designed to prepare a client for a specific occupation, including nursing, plumbing, electrical, auto mechanics, welding and barbering. The training is limited to education that leads to useful employment in a state recognized occupation. Training is available to clients through WIA, vocational/technical schools and some colleges and universities. Training includes courses for any state licenses, certificates, and/or degrees.

f. Job Skills Training Directly Related to Employment: This is training or education for job skills required by an employer to provide an individual with the ability to obtain employment or to advance or adapt to the changing demands of the workplace. It includes training or education required as a prerequisite for employment or to advance or adapt to changing demands of current employment. Such training and education will be provided through educational and training organizations. This activity also includes all activities described above as vocational education and any four—year bachelor's or advanced degree programs at any State certified college or university.

g. Education Directly Related to Employment for Individuals with No High School Diploma or Certificate of High School Equivalency: This is education related to a specific occupation, job, or job offer. It includes basic education and ESL, and where required as a prerequisite for employment, education leading to a GED or high school equivalency diploma in any educational program approved by the Alabama Department of Education.

h. Satisfactory School Attendance for Individuals with No High School Diploma or Certificate of High School Equivalency: Individuals in this activity must be attending an educational facility with the goal of achieving a high school diploma or certificate of high school equivalency. In addition, the student must be considered a “student in good standing”. The student must have regular attendance and the activity must be considered feasible for the student.

i. Subsidized Public or Private Sector Employment: This is paid employment funded with TANF or other public dollars in the public or private sector. In all cases, the

employer is reimbursed by DHR or other public programs for the gross wages paid by the employer to the employee. In addition, subsidized public and private sector employment in Alabama may be provided through college work study programs that meet the guidelines.

j. Community Service Employment: This is publicly and/or state funded, wage-paying jobs designed to provide employment for individuals and to address unmet community needs. See i. above.

d. Take such reasonable steps as the State deems necessary to restrict the use and disclosure of information about individuals and families receiving assistance under the program attributable to funds provided by the Federal Government (section 402(a)(1)(A)(iv) of the Social Security Act)

Pursuant to Code of Alabama Title 38, Section 38-2-6 information/case records of program participants is considered confidential and shall not be subject to public use or inspection. The release and disclosure of information about individuals and families receiving assistance through the Family Assistance Program is limited in scope by the purpose/program for which it is released/disclosed. Such release/disclosure is only permissible as follows:

— in connection with programs operated under Title I Aid to the Aged; Title IVA - Aid to Families with Dependent Children (AFDC); Title IVA - Block grants to States for Temporary Assistance for Needy Families; Title IVB -Child Welfare Services; Title IVD - Child Support and Establishment of Paternity; Title IVE - Foster Care (FCMP) and Adoption Assistance; Title X - Aid to the Blind; Title XIV - Aid to the Permanently and Totally Disabled; Title XVI - Aid to the Aged, Blind and Disabled; Title XVI - Supplemental Security Income (SSI); Title XIX - Medicaid; or Title XX - Block Grants.

— in connection with services provided by other entities integral to and consistent with the administration of public assistance pursuant to state laws under written agreements with the Department of Human Resources.

— in connection with the administration of other federal or federally assisted programs providing assistance in cash, in-kind, or services, directly to individuals on the basis of need.

— at the request of state, local or federal law enforcement authorities searching for fugitive felons or individuals violating a condition of probation or parole imposed under federal or state law (current address only).

— in connection with a public audit.

— in connection with the investigation of problems related to misuse of funds issued by the Department of Human Resources.

— at the request of the client under certain limited conditions as specified in department program manuals.

— in connection with the investigation of program fraud under certain conditions as specified in department program manuals and at the request of grand juries.

e. Establish goals and take action to prevent and reduce out-of-wedlock pregnancies, with special emphasis on teenage pregnancies (section 402(a)(1)(A)(v) of the Social Security Act)

The Department of Human Resources partners with the Children's Trust Fund of Alabama to competitively award grants to community and faith-based organizations for fatherhood programs across the state. These programs offer a myriad of services to all noncustodial parents, including parenting classes, with the overarching goal to strengthen families, to enhance child support collection and to address the multi-faceted needs of children growing up without the involvement of one or both parents in their lives.

The Department of Human Resources partners with the Alabama Department of Public Health which serves all women of childbearing age for pregnancy prevention efforts. Program projects through our After School Care partnership with the Alabama Alliance of Boys and Girls Clubs are provided for the purpose of preventing out of wedlock teen pregnancy. Those projects include Smart Moves, Smart Girls, Passport to Manhood and Date Smart. The focus of these activities includes prevention programs for premature sexual activity, self-esteem enhancement and personal responsibility.

Our goal specifically targeting teen pregnancy is to maintain out of wedlock teen births to at least 5% below the national average as published by the National Center for Health Statistics. In regard to the overall issue of out of wedlock pregnancy prevention, as part of the JOBS Program client assessment the case manager provides discussion and information about the impact of additional children as it pertains to the goals of personal responsibility, parenting and family support. Through these discussions it is our goal to provide individuals with sufficient information and assistance to move families from welfare to work without additional pregnancies during receipt of assistance and until such time as the family is stable. These activities in conjunction with our fatherhood and healthy marriage initiatives provide the foundation for success in this area.

f. Conduct a program designed to reach State and local law enforcement officials, the education system, and relevant counseling services, that provides education and training on the problem of statutory rape so that teenage pregnancy prevention programs may be expanded to include men (section 402(a)(1)(A)(vi) of the Social Security Act)

STATE LAWS-General

Code of Alabama at Section 13A-6-61 states in part that a person commits the crime of rape in the first degree which is a Class A felony if " He or she, being 16 years or

older, engages in sexual intercourse with a member of the opposite sex who is less than 12 years old.” Punishment for a conviction for this felony is life, or not more than 99 years or less than 10 years.

Code of Alabama at Section 13A-6-62 states in part a person commits the crime of rape in the second degree which is a Class B felony if “ being 16 years old or older, he or she engages in sexual intercourse with a member of the opposite sex less than 16 and more than 12 years old; provided the actor is at least two years older than the member of the opposite sex.” Punishment for a conviction for this felony is 2-20 years.

ERIN’S LAW

Alabama passed Erin’s Law in 2015. That law (and amendments) requires all K-12 public schools and Pre-K when available, establish a child sexual abuse prevention instructional program. The Alabama Department of Human Resources is a member of the Governor’s Task Force on Child Sexual Abuse Prevention as well as an active participant in the provision of training for mandatory reporters for this important legislation and activity. Further the Governor issued an Executive Order authorizing county Children’s Policy Councils to work in conjunction with local Child Advocacy Centers to develop a child sexual abuse prevention plan. As part of that plan through work with local school systems, development and presentation of an orientation for all middle school and high school students regarding peer to peer sexual abuse crimes was to be provided at the beginning of each school year.

The Department of Human Resources developed pamphlets containing information regarding the legal definitions and consequences of statutory rape. Two pamphlets were developed one targeted at educating males and the other to educate the parents about the consequences of a daughter under the age of 16 involved in a sexual relationship. The development of these pamphlets included review by staff of the Alabama Attorney General’s Office, Criminal Division, the Alabama Department of Education and internal review by various Divisions within the Department of Human Resources. We partner with the Alabama Department of Child Abuse and Neglect Prevention to fund Fatherhood Programs across the state. These pamphlets are distributed as part of the educational activities of these programs which are specifically targeted at noncustodial males. TANF funded Fatherhood programs number 24 throughout the state. In addition to being displayed in County Office waiting areas, these pamphlets are available to other interested entities in Alabama including law enforcement officials /agencies, schools, and contracted agencies. The Alabama Department of Corrections uses the pamphlets in educational programs if appropriate. Further these pamphlets are part of the materials distributed by State DHR staff at resource fairs hosted by Ingram State Technical College annually in prisons throughout Alabama. Attendees include male and female prisoners who have a possibility of being released within the next 6, 8, to 12 months. County DHR Staff distributes the pamphlets as appropriate to individuals applying for or receiving Family Assistance and in other program areas such as Child Support Enforcement and Family Services as deemed necessary.

TANF workers are required to report cases of suspected abuse or neglect to the appropriate service staff. This activity specifically includes the circumstances of girls under the age of 16 having sex with males who are at least 16 years old and at least two years older than the female.

g. Implement policies and procedures as necessary to prevent access to assistance provided under the State program funded under this part through any electronic fund transaction in an automated teller machine or point-of-sale device located in a place described in section 408(a)(12), including a plan to ensure that recipients of the assistance have adequate access to their cash assistance (section 402(a)(1)(A)(vii) of the Social Security Act)

Statement of Policy: Use of an Electronic Benefit Transfer (EBT) card to withdraw FA benefits or process a payment for merchandise or a service from an automated teller machine (ATM) or point of sale (POS) device physically located in liquor, wine or beer stores, casinos or other gambling establishments, strip clubs, tattoo or body piercing facilities or facilities providing psychic services is prohibited. Such use constitutes an unauthorized EBT transaction. Use of any portion of the FA benefits whether in cash or an EBT transaction to purchase alcoholic beverages, tobacco products or lottery tickets is also prohibited. Purchase of any of these items is referred to as unauthorized FA expenditures.

Definitions:

Unauthorized EBT Transaction: Use of an EBT card to withdraw FA benefits or process a payment for the purchase of merchandise/goods or services from an ATM or POS device physically located in a liquor, wine or beer store, gambling establishment, strip club, tattoo or body piercing facility or a facility providing psychic services.

Liquor, wine or beer store: Any retail establishment selling exclusively or primarily alcoholic beverages.

Gambling establishment: A retail establishment offering casino, gambling or gaming activities as the primary purpose of the establishment.

Strip Club: Any retail establishment providing adult-oriented entertainment in which performers disrobe or perform in an unclothed state for entertainment.

Tattoo or body piercing facility: Any retail establishment selling exclusively or primarily tattoo or body piercing services.

Psychic services facility: Any retail establishment selling exclusively or primarily psychic services.

Unauthorized FA expenditures: Use of any portion of the benefits whether in cash or an EBT transaction for the purchase of alcoholic beverages, tobacco products or lottery tickets.

Alcoholic beverages: Any alcoholic, spirituous, vinous, fermented, or other alcoholic beverage or combination of liquors and mixed liquor, a part of which is spirituous, vinous, fermented, or otherwise alcoholic, and all drinkable liquids, preparations or mixtures intended for beverage purposes, which contain one—half of one percent or more alcohol by volume, and shall include liquor, wine and beer.

Tobacco products: Any product that contains tobacco such as cigars, cigarettes, pipe and chewing tobacco and associated paraphernalia.

Lottery ticket: Any ticket purchased for a game of chance operated by a state government such as instant lotteries, general lotteries and lotto.

Practices: Educate clients; investigate reported violations; automate prevention actions; impose penalties on FA recipients and provide benefit access.

Client Education - Clients are educated about the spending restrictions as follows: mandatory discussion of the prohibition by the eligibility worker with all new applicants; public information materials which state the prohibition to include program summarized eligibility rules, client EBT brochures, automated client notices of case action, the program applicant/recipient affirmation and agreement statement which requires client certification of understanding and agreement to adhere to the prohibition in writing. The prohibition language is posted on the Department website and the EBT client portal. Further recipient grantee relatives must acknowledge in writing understanding of the rule as part of the Family Responsibility Plan (FRP) under the JOBS Program as discussed in section (c) above.

Automated Prevention Actions-Alabama's EBT vendor blocks ATMs in the specified prohibited locales. The vendor also blocks prohibited transactions using merchant category codes.

Financial Penalties (1) For the first instance of noncompliance, the assistance unit will be disqualified from receiving benefits for a one-month period. **(2)** For the second instance of noncompliance, the assistance unit will be disqualified from receiving benefits for a three-month period. **(3)** For the third instance of non—compliance, the assistance unit may continue to receive benefits if otherwise eligible, but the grantee relative is permanently disqualified from receiving benefits as a grantee relative, and, if included in the assistance unit is permanently disqualified to be a member of the assistance unit. Payment to the assistance unit will be made to another relative living in the home or other protective payee pursuant to Department operating guidelines. The disqualified grantee relative may continue to receive benefits for other eligible assistance unit members for a temporary period while appointment of another grantee relative is being processed. **(4)** In addition to penalties in (1) - (3) above, the recipient must reimburse the Department as follows: For unauthorized EBT transactions, the amount withdrawn and/or used; for unauthorized FA expenditures, the amount of the purchase. Reimbursement in the full amount must be made before the assistance unit can again receive benefits following a period of disqualification as described in (1) and (2) above or before

another relative living in the home or a protective payee can be approved to receive as described in (3) above.

Benefit Access—Recipients can access FA benefits at any ATM or POS device at any location with such a device other than the prohibited locations. EBT cards are not accepted in state owned liquor stores known as Alcoholic Beverage Control (ABC) stores. To ameliorate an identified situation of unauthorized EBT transactions, the client will be referred to the Client Help Desk provided by our Contractor who is required to provide Customer Service, toll free via a 1—800 number for benefit access information as well as other account information. As part of the delivery of Customer Service, our Contractor is required to provide information 24/7 about POS/ATM site locations where benefits can be accessed. The Contractor must provide general information to clients regarding stores and ATMs. In order to do this the Contractor maintains a database and tracks retailers providing cash back and ATMs that accept the Alabama EBT cards. The Contractor must ensure that no cash client travel any further than 15 miles to any cash access location (either retailer or ATM). Further, if the Contractor is informed of the fact that there is no location within 15 miles or less to provide cash services they will make an effort with assistance from the Department to look into the businesses that are in the area and see if a location is willing to provide the service. If there are no businesses that can or will do so, then the Contractor would inform the Department of why and provide the closest business that will. According to information from the Department EBT Office, to date there has not been an instance where the “15 miles or less” rule could not be met.

Information about benefit access, lost and stolen cards, customer service, pin numbers, etc. is explained to clients during the application interview and is provided in the EBT client information brochure provided to the client by the vendor and on the EBT client website. That website can be accessed using WWW.ConnectEBT.com or WWW.DHR.Alabama.gov ;Family Assistance; More Information; EBT Account Information. From the home page of the referenced website on the right-hand side select Alabama and submit. Information on a number of topics can be found by clicking on the question containing the topic of interest.

h. Ensure that recipients of assistance provided under the State program funded under this part have the ability to use or withdraw assistance with minimal fees or charges, including an opportunity to access assistance with no fee or charges, and are provided information on applicable fees and surcharges that apply to electronic fund transactions involving the assistance, and that such information is made publicly available (section 402(a)(1)(A)(viii) of the Social Security Act)

The first two cash ATM withdrawals in a month are free. Any subsequent ATM withdrawals in the same month incur a fifty cents (\$.50) fee. Recipients can receive cash back when using their EBT cards for purchases and incur no transaction fee. Information regarding fees is provided in the EBT client information brochure provided to the client by the vendor and on the EBT client website which can be accessed through the two websites listed at the end of Section g.

i. Indicate whether it intends to treat families moving from another State differently from other families under the program, and if so how (section 402(a)(1)(B)(i) of the Social Security Act)

Families moving into the State from another State will be treated the same as other families under the program. Therefore, the policies and procedures of the Family Assistance Program applicable in a county will be applied uniformly to all residents of the State (County) whether current or new.

j. Indicate whether it intends to provide assistance to non-citizens, and if so include an overview of the assistance (section 402(a)(1)(B)(ii) of the Social Security Act)

Citizens and qualified non—citizens are eligible to the extent permitted under federal law, Title IV of Public Law 104—193, as amended. Recipients must be citizens, qualified aliens who entered the United States before August 22, 1996, qualified aliens who entered the United States on or after August 22, 1996 who are excepted from the 5—year bar or aliens who entered the United States on or after August 22, 1996 and have been in “qualified alien” status for at least 5 years. Victims of severe forms of trafficking are eligible for federally funded TANF benefits to the same extent as refugees. Aliens who (or whose child or parent) have been battered or subjected to extreme cruelty in the U.S. are eligible under certain circumstances consistent with Federal law as specified in program operating manuals.

k. Set forth objective criteria for the delivery of benefits and the determination of eligibility and for fair and equitable treatment, including an explanation of how it will provide opportunities for recipients who have been adversely affected to be heard in a State administrative or appeal process (section 402(a)(1)(B)(iii) of the Social Security Act)

Delivery of benefits is dependent on the component program of the FA Program and includes delivery by Electronic Benefit Transfer (EBT), by vendor payment, cash payments or provision of services.

Eligibility rules of the Department of Human Resources will be uniformly applied in all cases in a county. The determination of need and amount of assistance for all applicants and recipients will be made on an objective and equitable basis and all types of income and potential income will be taken into consideration in the same

way except where otherwise specifically authorized by State or Federal law or the Administrative Code of the Department of Human Resources or as stated in program operating guidelines issued by the State Department of Human Resources, Family Assistance Division. The State will adhere to prohibitions and requirements of Section 408 of Part A of Title IV of the Social Security Act. Pursuant to subparagraph (B) of Section 408(a)(10) Good cause exceptions to subparagraph (A) of Section 408(a)(10) include absence due to medical reasons, school attendance, visits, conducting business, participating in Job Corps or vocational training.

1. Financial Responsibility for Program Benefits

For assistance subject to time limits, financial responsibility for needy children includes parents and stepparents in the home and alleged fathers living in the home with their child and the child's mother. Income of all members of the assistance unit will be considered in determining eligibility of the assistance unit for benefits and amount of payment.

Income of parents and stepparents ineligible due to alien status, disqualification for fraud or spending restrictions violations, exclusion as a parole violator, or for a conviction of a felony or for fraudulently misrepresenting residence will also be used to determine eligibility if appropriate and applicable according to department operating manuals or other instructions. Earned income from new employment may be disregarded for the first twelve months wages are received if timely and accurately reported and the individual is otherwise eligible for the disregard pursuant to Family Assistance Program guidelines.

2. Summarized Eligibility Rules

In order to be eligible families must:

- meet component specific conditions including the following if applicable
- be U.S. citizens (or meet alienage requirements in Title IV of P.L. 104—193 and/or be a legal immigrant residing in the U.S. prior to August 22, 1996).
- be residents of Alabama.
- be in need by agency financial standards. See Attachment E.
- cooperate in self-sufficiency requirements including work and child support enforcement activities unless deferred from work requirements or unless good cause exists not to cooperate with child support if applicable.
- provide or apply for a SSN for each member of the assistance unit
- not be on strike (applicable to cash component only)
- complete applicant job search
- cooperate with drug screening activities

3. Medical Services Guidance

Section 408(a)(6) of the Social Security Act prohibits the use of federal funds to provide medical services and states that the term “medical services” does not include pre-pregnancy family planning services. Pursuant to the preamble to the final rule dated April 12, 1999, page 17841, the purpose of this section is to provide guidance as to what is not considered a medical service for purposes of administration of the TANF Program.

The following activities/services that are consistent with TANF purposes 1 and 2 and related to employment and/or work participation activities for cash assistance recipients or required as a condition of eligibility for cash assistance are not considered medical services:

— pre-employment physical examination by a health professional that does not include treatment.

— payment to a health professional for completion of Department forms. (Used for eligibility determinations related to time limits which constitutes an administrative cost and for work activities).

— payment to a health professional or entity for administration of a pre-employment drug test or TB test or for administration of a drug test as a condition of eligibility for cash assistance.

— assessment, testing or other determinations of modification by a health professional needed for reasonable accommodation related to a participant’s incapacity/disability. Excludes treatment.

— dental services needed to eliminate a barrier to participation or employment. The service may not be of a surgical or other medical nature as confirmed by the service provider. Examples of such services include dental hygiene, veneers, bonding, whitening, preventive care x-rays, etc.

The Family Assistance Program will provide cash assistance pursuant to 45 CFR 260.31 on a time limited basis (time limit is 5 years) consistent with provisions in section 408, Part A, Title IV of the Social Security Act (and supportive services to enable families to become self-sufficient) to eligible families. In order to receive past 60 months the grantee or spouse of the grantee must have a circumstance/situation which creates a barrier to self sufficiency known as a hardship and s/he must be cooperating with child support and complying with JOBS as appropriate. See Attachment F below.

Attachment F

CRITERIA FOR EXCEPTION TO TIME LIMITS

In order to receive past 60 months the grantee or spouse of the grantee must have a circumstance/situation which creates a barrier to self-sufficiency known as a hardship and s/he must be cooperating with Child Support and complying with JOBS as appropriate. To be eligible both criteria in A & B must be met and continue to be met in each month after 60.

A. Hardships

The grantee or spouse of the grantee must meet one of the following circumstances and must not be employed. If a hardship is established but the individual becomes employed or employable (as determined by the JOBS worker) eligibility is lost.

A hardship may exist when the grantee or spouse of the grantee:

- 1. Is a person whose presence is required on a substantially continuous basis due to the illness or incapacity of the spouse, child, mother-in-law, father-in-law or of an individual to whom the relationship of the caregiver is within certain degrees of relationship and no other person is available to provide the needed care.**
- 2. Has an illness or injury which has lasted or is expected to last at least 30 days and which is serious enough to temporarily prevent employment (or training with the hope of employment) when determined on the basis of medical evidence from the attending physician/clinic. This includes pregnancy when it has been determined by medical evidence that working or participation in training would be detrimental to the woman or the unborn child.**
- 3. Is incapacitated with a physical or mental impairment determined by a physician or a licensed or certified psychologist which prevents or substantially reduces the individual's ability to work.**
- 4. Is fleeing current domestic violence or abuse because s/he recently has been battered or subjected to extreme cruelty as verified by certain documentary evidence specified in program manuals.**
- 5. Is participating in drug, alcohol or mental health counseling as verified through the sources of the counseling to the extent participation in program work requirements is precluded.**
- 6. Is age 60 or older.**
- 7. Has a personal barrier of such significance as to preclude training and/or employment and is engaged in an activity to overcome the barrier.**
- 8. Lives in a Food Assistance ABAWD waiver county and has not been disqualified due to noncompliance with JOBS since December, 1996.**

B. Program Compliance Criteria

The grantee and/or the spouse of the grantee must cooperate with Child Support and comply with JOBS in each month past 60. Failure to meet this criteria results in (1) permanent loss of program eligibility for the grantee and spouse of the grantee regardless of family circumstances and (2) recovery of all benefits received past month 60.

CHILD SUPPORT ENFORCEMENT PROGRAM

Individuals receiving assistance are required to cooperate in child support enforcement activities unless good cause as defined in department program manuals

exists not to do so. See Attachment D below. The penalties for failure to cooperate are as follows:

Applicants:

Upon overt refusal of the grantee relative or other member(s) of the assistance unit required to cooperate with child support enforcement, the application will be denied and entitlement to benefits for the month of application through the month of application disposition is lost even if reapplication is made in the month of the original application disposition.

Recipients:

For the first three months of non-cooperation (consecutive or not) the grant amount is reduced by 50% of the payment standard for the assistance unit size. For months of non-cooperation in excess of three months, the assistance unit is disqualified for a one-month period for the first disqualification. For a month of non-cooperation following the first disqualification, the assistance unit is immediately disqualified for a six-month period. For a month of non-cooperation following the second and subsequent disqualifications, the assistance unit is immediately disqualified for a twelve-month period. Attachment D

GOOD CAUSE FOR NONCOOPERATION IN CHILD SUPPORT ACTIVITIES

An applicant/recipient for assistance under the Family Assistance Program must cooperate with the agency in child support enforcement activities unless it is determined that cooperation in such activities is not in the child's best interest. Circumstances under which cooperation may not be in the child's best interest include:

1. Physical or emotional harm of a serious nature is reasonably expected to occur to the child or to the parent or relative with whom the child is living.
2. The child was conceived as a result of incest or forcible rape.
3. Legal proceedings for adoption of the child are pending before a court of competent jurisdiction.
4. The applicant/recipient is currently being assisted by a public or licensed private social agency to resolve the issue of whether to keep the child or relinquish for adoption and the discussions have not gone on for more than three months.

DRUG SCREENING

Certain individuals applying for and/or receiving assistance must cooperate in activities needed to determine if reasonable suspicion exists that the individual uses or is under the influence of a drug and by taking a drug screening if reasonable suspicions exists. This provision is applicable to individuals applying for cash assistance on or after October 1, 2015 and to individuals awarded as a result of such application. The penalties for failure/refusal to cooperate are as follows:

Applicants:

Failure/refusal of an applicant to cooperate results in denial of the application for the assistance unit and loss of benefits for that application period, i.e., month of application through the month of disposition of the application. Failure/refusal of an applicant being added back to an open case results in denial of the application for the individual for that application period and case closure.

Recipients:

Failure/refusal of a recipient to cooperate results in case closure.

The penalties for a positive screening result without a valid prescription for the identified drug are as follows:

- For the first positive drug screening, a warning shall be issued that subsequent positive tests will result in loss of benefits and that other random drug screenings will be required.**
- For the second positive drug screening, the adult will be ineligible for benefits for one year.**
- For the third positive drug screening, the adult will be permanently ineligible to receive assistance and payment to the otherwise eligible assistance unit will be made to another relative living in the home or other protective payee pursuant to Department operating guidelines. The ineligible grantee relative may continue to receive benefits for other eligible assistance unit members for a temporary period while appointment of another grantee relative/protective payee is being processed.**

Client Opportunity for Review of Action Taken

Procedures for client review of case action (or inaction) taken to deny, reduce, or terminate benefits with which the client is dissatisfied provide for three options for review as follows:

(1) a conference with the County Department of Human Resources. This action must be requested by the client or his representative orally or in writing within 60 days following the specific action (or inaction) with which the client is dissatisfied. This action provides the client an opportunity to discuss the action directly with agency staff and to present additional information to indicate the action may be incorrect. Corrective action is taken if the findings so indicate.

(2) a state office review of the case record conducted by a staff member of the Family Assistance Division, State Department of Human Resources. This action must be requested by the client or his representative in writing directed either to the County Department of Human Resources or the State Department of Human Resources within 60 days following the specific action (or inaction) with which the client is dissatisfied. The client and/or his representative are notified of the outcome of this review in writing. Corrective action is taken if the findings so indicate.

(3) a formal hearing conducted by the State Department of Human Resources, Family Assistance Division, Hearing Officer either in person or by telephone. This action must be requested by the client or his representative in writing directed to the

County Department of Human Resources or the State Department of Human Resources within 60 days following the action (or inaction) with which the client is dissatisfied. The client and/or his representative are notified of the outcome of the hearing in writing. Corrective action is taken if the findings so indicate.

Applicants and recipients are notified in writing of all action (award, denial, increase, reduction, termination, etc.) taken in their case. Information about the review opportunities discussed above as well as instructions regarding how to request and where to send the request is provided to clients as general information on all automated system notices generated and mailed to clients at award, termination or change in circumstances. If a system notice is not sufficient to explain case action a manually prepared case action form is completed and mailed which also contains the general information in regard to a review of case action described above. The summarized eligibility requirements pamphlet for the Family Assistance Program contains similar language and is required to be given and explained to all applicants and as needed to recipients during the interview process. This pamphlet is also posted on DHR's website on the Family Assistance Program page. Rules of review for special projects may vary dependent on the project and would be included in informational materials as appropriate.

Applications will be acted on in a timely manner. Department rules provide that not more than 30 days shall elapse between the date of application and the date the first benefits are made available or the notice of denial is mailed. The number of applications that exceed such standard is kept to a minimum. The standard of promptness is monitored and reported to County Directors of Human Resources monthly.

PAYMENT ACCURACY AND PROGRAM INTEGRITY

The program is supported by an automated system operational in all counties of the State. Activities in support of the Income and Eligibility Verification System (IEVS) as required by Section 1137 of the Social Security Act for persons applying for and receiving assistance is operational in all counties of the State.

Methods are in place to ensure payment accuracy to eligible families which includes mandatory case record reviews by county office supervisory staff with a re-review of a sample of those records by state office field supervisors. Identified deficiencies require corrective action. State statistics about payment accuracy are published to the Directors, County Departments of Human Resources monthly. Payment accuracy is a component of County Director evaluations. The state is subject to Federal and State Audits.

Program operating guidelines contain provisions to strengthen and maintain program integrity from fraud prevention actions to recovery of erroneously paid benefits. Benefit recovery activities include automatic recoupment from current benefits as well as client repayment based on written agreements. As part of our Fraud Control Program individuals found guilty of committing an intentional program violation by a state or Federal court of competent jurisdiction in Alabama or by a department disqualification hearing will be disqualified pursuant to

program policies from participation in the cash assistance component of the Family Assistance Program (including removal as grantee relative for those individuals not included in the assistance unit) as follows: for a period of 6 months upon the first occasion of any such offense; or a period of 12 months upon the second occasion of any such offense and permanently upon the third or subsequent occasion of such offense. This disqualification penalty relates to an applicant or recipient of FA who is found on the basis of a plea of guilty or nolo contendere or otherwise to have intentionally made a false or misleading statement or misrepresented , concealed or withheld facts or committed any act intended to mislead , misrepresent, conceal or withhold facts or profound falsity for the purpose of establishing or maintaining eligibility or increasing the amount of the grant or in seeking replacement of stolen benefits. This penalty is in addition to our adherence to the statutory prohibitions and requirements of Title IV-A, Social Security Act, Section 408 as stated earlier in this section.

CIVIL RIGHTS COMPLIANCE

The Family Assistance Program, like all programs and services of the Department of Human Resources, is administered in full compliance with Title VI of the Federal Civil Rights Act of 1964, Section 504 of the Rehabilitation Act of 1973, the Americans with Disabilities Act of 1990 and all other Federal and State civil rights laws.

Language assistance so as to ensure meaningful access to all Department programs, services and benefits is provided to individuals needing such services consistent with the Department's Language Assistance Plan first issued on August 24, 2005 and revised January 2012 as well as the Family Assistance Division Language Plan issued effective October 1, 2021.

Reasonable accommodations are provided to enable full use of existing programs and services to those individuals who tell us (or for whom we determine) they have a physical, mental or learning disability that limits a major life activity. Client case action notices provide information about the availability of reasonable accommodations. The Family Assistance Division issued an ADA and Reasonable Accommodations Plan to county staff effective February 1, 2021.

In addition to the above referenced plans, Departmental program operating manuals for the Family Assistance Program contain guidelines for county staff about reasonable accommodations as well as information about language assistance.

SCREENING AND IDENTIFICATION OF DOMESTIC VIOLENCE

Procedures are in place through the statewide Special Assessment, Intervention and Liaison Project (SAIL) for eligibility workers to routinely screen and identify domestic violence for individuals applying for or receiving cash assistance. JOBS case managers include questions on domestic violence as part of the JOBS assessment as well. Staff receive specific training in aspects of domestic violence used to understand, inform, and screen for such activity. Program policy manuals provide information to be used as learning tools for staff in this regard as well. For those identified as victims of domestic violence, referrals are made to the Alabama

Coalition Against Domestic Violence for a variety of services including development of a safety plan, information and referral, supportive services, counseling and case management, etc. Certain program rules are waived for those individuals identified as in imminent danger and include child support enforcement activities, time limits and work participation requirements (although the client may volunteer to participate). As part of the screening /information process, staff are instructed to give applicants/recipients the Department Domestic Violence Information Pamphlet which provides general information about domestic violence and provides information about resources for those experiencing domestic violence and who need/want help.

PUBLIC INVOLVEMENT

Pursuant to Title IV-A, Section 402, Alabama's TANF State Plan is published and maintained on the Department of Human Resources website. Written comments on this plan were solicited and a period of 45 days was provided for such comments. Further Alabama law at Section 41, Chapter 22 Administrative Procedure, provides for the promulgation of program rules on requirements to receive assistance. Two of the stated purposes of that Act are to increase public access to governmental information as well as to increase public participation in the formulation of administrative rules. The law requires publication of the referenced program rules for public comment in the Alabama Administrative Monthly for a period of 35 to 90 days. This rule affords all interested parties reasonable opportunity to submit data, or arguments, orally or in writing. The publication of the plan on the website and the proposed program rules process provide for input from other state agencies, public and private organizations, the general public and other pertinent entities during development and implementation.

FINANCIAL CRITERIA - Attachment E

1. Cash Assistance

A. Monthly Maximum Payment Standards

STANDARDS FOR FAMILY ASSISTANCE PROGRAM

Assistance Unit Size Payment Standard

1 \$264

2 \$304

3 \$344

4 \$392

5 \$440

6 \$488

7 \$536

8 \$584

9 \$632

10 \$680

11 \$728

12 \$776

13 \$824

14 \$872

15 \$920

16 \$968

B. Resource Standards

Not applicable effective October 1, 2009.

C. Work Program Supportive Services (Former Recipients and Needy Applicants)

Family's gross income is less than 200% of the HHS federal poverty guidelines by family size.

Attachment E cont'd.

2. TANF Emergency Assistance (Formerly EA)

Annual family income is lower than two times the state's estimated median income level for a family of three, i.e. \$57,376 (1990).

3. TANF Direct Child Welfare Assistance

Child's or family's gross income is equal to or less than 200% of the HHS poverty guidelines by family size.

4. Special Projects

Eligible Families: Child's, individual's (including pregnant women), or family's gross income can be up to 300% of the HHS poverty guidelines by family size. Additionally, the family's receipt of other means tested benefits/services is sufficient to convey categorical financial eligibility as well as receipt of benefits/services from an entity (organization, state agency, etc.) or program whose client population is largely low income.

1. Indicate whether the State intends to assist individuals to train for, seek, and maintain employment (Section 402(a)(1)(B)(v) of the Social Security Act)—

1. providing direct care in a long-term care facility (as such terms are defined under section 1397j of this title); or

2. in other occupations related to elder care, high-demand occupations, or occupations expected to experience labor shortages as, determined

appropriate by the State for which the State identifies an unmet need for service personnel, and, if so, shall include an overview of such assistance.

The State does not intend to fund a special initiative for training/employment of individuals providing direct care in a long—term facility or in other occupations providing eldercare. However, on a case—by—case basis TANF cash assistance recipients can receive assistance/services while pursuing training/employment to provide such eldercare as part of their IJP and FRP as discussed in section (c) above as well as certain TANF eligibles as part of our Career Pathways Initiative in partnership with the Alabama Community College System, Adult Education Program. Assistance/services in this regard include payment for short term skills-based training to obtain classification/credentials as a Certified Nursing Assistant (CNA), supplies, uniforms, equipment, etc. as well as services/training leading to a work ready credential in an occupation that is in high demand.

m. Provide for all MOE-funded services the following information: the name of the program benefit or service, and the financial eligibility criteria that families must meet in order to receive that benefit or service. In addition, for TANF MOE-funded services (co-mingled or segregated MOE) describe the program benefit provided to eligible families (SSP services do not have to include a description but the Department of Health and Human Services encourages it) (§263.2(b)(3) & §263.2(c) preamble pages 17826-7)

MOE funded services are included in all of the components of the program described in Section(a) with the exception of Cash Assistance listed in Section (a). 1. A. and includes the associated administrative and/or system activities as follows:

Work Program (Section (a)1. B.): Supportive services to include childcare, transportation, other work and training services as well as non-recurrent short-term benefits. Financial criteria to receive these benefits is to be an FA recipient or FA eligible former recipient whose family income is less than 200% of the federal poverty level by family size.

Certain child welfare services as described in TANF Emergency Assistance (Section (a) 2) and TANF (Direct) Child Welfare (Section(a) 3.): Benefits include payment for shelter, foster care, emergency living expenses, information and referral, case planning/management, counseling and other support services and health maintenance activities, family intervention services, transitional services and non-recurrent short-term benefits. Financial criteria to receive benefits under Section (a) 2. is annual family income lower than two times the state's estimated median income level for a family of three, i.e. \$57,376 (1990) and for the latter the income of the child or family's gross income must be equal to or less than 200% of the federal poverty level by family size.

Special Projects: 1. Eligible Families: Non-assistance expenditures for services including information and referral to needy parents/families such as nonrecurrent, short-term benefits as discussed in 45 CFR 260.31, day care, subsidized employment, transportation and work and training services, statewide food distribution network activities and pro-family activities expected to prevent and reduce the incidence of out of wedlock births as well as encourage the formation and maintenance of healthy two parent families including after school activities for teens, fatherhood and healthy marriage initiatives, family reunification/preservation activities, mentoring and literacy programs, early childhood education programs and domestic violence/drug abuse/prevention/education programs. See Attachment E. in section (k) for general financial criteria for these projects. Additional non-financial criteria, if any, are dependent on the project plan.

Projects: Food Distribution Program provides emergency food to needy families with children whose income is less than 185% of the federal poverty level by family size.

Pre-K Programs provide early childhood education and promote literacy, and school attendance. Eligible families have income less than 300% of the federal poverty level by family size.

Strengthening Families through Family Formation and Reducing Neglect/Abuse provides school associated/after school programs as well as strengthening families through parent education and support services. Eligible families have income less than 300% of the federal poverty level by family size.

2. Pro-Family Activities for Other Than Eligible Families: Non-assistance in the form of non-federal cash and in-kind qualified expenditures by third parties for individuals and families pursuant to 45 CFR 263.2(a) (4) (ii). Program specifics including non-financial eligibility criteria, if any, are contained in written agreements/contracts between the Department of Human Resources and the third party and in project plans as applicable. These benefits and services are provided without regard to financial need or family composition.

TANF Certifications

States that include TANF in the Combined State Plan must provide a certification by the chief executive officer of that State, that during the fiscal year, the State will:

Operate a child support enforcement program under the State Plan approved under part D. (section 402(a)(2) of the Social Security Act) Yes

Operate a foster care and adoption assistance program under the State Plan approved under part E, and that the State will take such actions as are necessary to ensure that children receiving assistance under such part are eligible for medical assistance under The Unified or Combined State Plan under title XIX. (section 402(a)(3) of the Social Security Act) Yes

Specify which State agency or agencies will administer and supervise the program referred to in paragraph (1) for the fiscal year, which shall include assurances that

local governments and private sector organizations (section 402(a)(4) of the Social Security Act)—have been consulted regarding the plan and design of welfare services in the State so that services are provided in a manner appropriate to local populations; Yes

Specify which State agency or agencies will administer and supervise the program referred to in paragraph (1) for the fiscal year, which shall include assurances that local governments and private sector organizations (section 402(a)(4) of the Social Security Act)—have had at least 45 days to submit comments on the plan and the design of such services Yes

Provide each member of an Indian tribe, who is domiciled in the State and is not eligible for assistance under a tribal family assistance plan approved under section 412, with equitable access to assistance under the State program funded under this part attributable to funds provided by the Federal Government. (section 402(a)(5) of the Social Security Act) Yes

Establish and enforce standards and procedures to ensure against program fraud and abuse, including standards and procedures concerning nepotism, conflicts of interest among individuals responsible for the administration and supervision of the State program, kickbacks, and the use of political patronage. (section 402(a)(6) of the Social Security Act) Yes

(optional) Establish and Enforcing standards and procedures to (section 402(a)(7) of the Social Security Act). screen and identify individuals receiving assistance under this part with a history of domestic violence while maintaining the confidentiality of such individuals; Yes

(optional) Establish and Enforcing standards and procedures to (section 402(a)(7) of the Social Security Act). - refer such individuals to counseling and supportive services; Yes

(optional) Establish and Enforcing standards and procedures to (section 402(a)(7) of the Social Security Act).—waive, pursuant to a determination of good cause, other program requirements such as time limits (for so long as necessary) for individuals receiving assistance, residency requirements, child support cooperation requirements, and family cap provisions, in cases where compliance with such requirements would make it more difficult for individuals receiving assistance under this part to escape domestic violence or unfairly penalize such individuals who are or have been victimized by such violence, or individuals who are at risk of further domestic violence Yes

Establish and enforce standards and procedures to (Section 402 (a)(8) – ensure that applicants for assistance under the State program funded under this part are notified of assistance made available by the State to victims of sexual harassment and survivors of domestic violence, sexual assault, or stalking; Yes

Establish and enforce standards and procedures to (Section 402 (a)(8) – ensure that case workers and other agency personnel responsible for administering the State

program funded under this part are trained in the nature and dynamics of sexual harassment and domestic violence, sexual assault, and stalking; State standards and procedures relating to the prevention of, and assistance for, individuals who are victims of sexual harassment or survivors of domestic violence, sexual assault, or stalking; and methods of ascertaining and ensuring the confidentiality of personal information and documentation related to applicants for assistance and their children who have provided notice about their experiences of sexual harassment, domestic violence, sexual assault, or stalking; Yes

Ensure that, if a State has elected to establish and enforce standards and procedures regarding the screening for, and identification of , domestic violence, sexual assault or stalking pursuant to paragraph (7) the State program funded under this part provides information about the options under this part to current and potential beneficiaries; and case workers and other agency personnel responsible for administering the State program funded under this part are provided with training regarding State standards and procedures pursuant to paragraph (7). Yes

Make available to the public a summary of the State Plan. Yes

CERTIFIED BY THE CHIEF EXECUTIVE OFFICER OF THE STATE:

_____	_____Governor
Date	Signature and Title